



DECISION

Complaint No. : POS/133/25/R-Thar/2025

Name and address of the complainant : Mr. Abdul Razzaque S/o Abdullah
r/o Village Ghono Jhun P.O Mithi
Taluka Islamkot District Tharparkar.

Name of the Agency Complained against : Revenue Department

Name & Designation of Investigating Officer : Mr. Muhammad Umar Panhwar,
Regional Director Tharparkar @ Mithi.

Vetted by : Dr. Khalil-ur-Rahman Shaikh,
Advisor- I.

Subject : COMPLAINT AGAINST ASSISTANT COMMISSIONER, MUKHTIARKAR AND TAPEDAR ISLAMKOT REGARDING SURVEY NO. 10, 17, 20, 27, 39 AND OTHERS.

THE COMPLAINT

Mr. Abdul Razzaque filed a complaint on 24-12-2024 against the Revenue Department, Taluka Islamkot, alleging irregularities in respect of Survey Nos. 10, 17, 20, 27, 39 and others.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, subject to submission of a copy of CNIC and Affidavit on Form "A".
3. The matter was taken up with the Assistant Commissioner and the Mukhtiarkar (Revenue) Taluka Islamkot, district Tharparkar @ Mithi vide letter dated 07-01-2025 for report. In response, on 15-01-2025, the Mukhtiarkar submitted his report stating that the concerned Tapedar was directed to verify the record of rights. After verification, the Tapedar reported that record position reveals that Entry No. 64 dated 30-11-1992 of VI-VII-B, Survey Nos. 17, 20, 27, 39 of Makan Laivari and Survey Nos. 19, 05, 12, 13, 15 & 28 of Makan Korbah, Deh Jhun, Taluka Islamkot stand recorded in the names of the respective Khatedars mentioned therein. It was further reported that no new mutation entry was made after the said entry in 1992. The complainant submitted a rejoinder on 17.01.2025 and expressed dissatisfaction on the report dated 15.01.2025.
4. In response of notice dated 21-01-2025, the Assistant Commissioner, Mukhtiarkar (Revenue), Taluka Islamkot and the complainant attended the hearing on 26.02.2025. The complainant also filed a written statement. As per discussion during hearing, the Mukhtiarkar submitted a detailed report on 19-03-2025, stating that:
 - Both parties were called on 18-03-2025.
 - The Tapedar produced the original record of rights.
 - The record shows that the father of the complainant, Abdullah S/o Siddique, and the father of the opponent, Manthar S/o Haji, are co-sharers in the said survey numbers.
 - The dispute between the parties relates to possession of land, not mutation or record tampering.
5. The complainant vide letter dated 17.04.2025 stated that the Assistant Commissioner had submitted report in respect of Survey No. 09 whereas account of rest 02 survey numbers were not mentioned. He vide another letter dated 07.08.2025 stated that his request for changing Fotikhata was pending despite the submission of all relevant documents to the concerned Revenue officials and receiving statements of his witnesses on 01.06.2024 by the Mukhtiarkar and others in Khuli Katchery.

6. The Assistant Commissioner submitted report dated 04.07.2025 and reiterated the facts mentioned in his earlier report dated 19.03.2025. He further stated that father of the complainant Mr. Asadullah s/o Siddique and father of opponent namely Manthar s/o Haji had stated in their statements that they had no objection about the earlier Fotikhata Badal and mutated in Record of Rights available in the Office of Mukhtiarpar in favour of legal heirs of the deceased.

7. On 06.11.2025, the complainant appeared and submitted a written statement declaring that :

- He is satisfied with the reports submitted by the Assistant Commissioner and Mukhtiarpar and with the observations made during hearings.
- The matter pertains to civil jurisdiction of Revenue Courts/ Civil Court for adjudication of possession and co-ownership dispute.
- He requested to close his complaint, as he intends to pursue the matter before the competent Revenue/ Civil Court.

DECISION

8. In view of the above facts and circumstances, the case is disposed of as closed and papers are consigned to record.

Given under my hand and seal of Office



Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz-PAS
Ombudsman Sindh
Karachi, dated: 16th April, 2026

